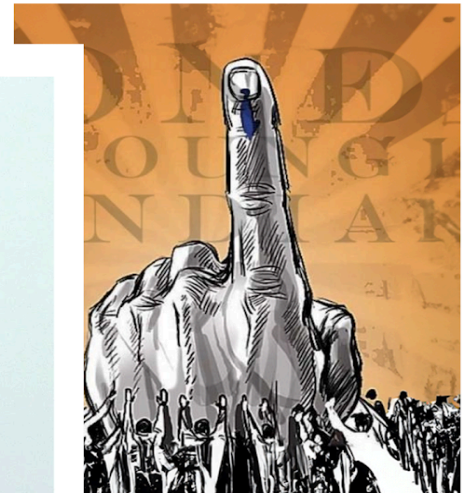


General Knowledge

Indian Polity

STUDY NOTES

Parliament - Lok Sabha



PARLIAMENT - LOK SABHA



Historical Background of Lok Sabha:

- **Colonial Roots:**

- The concept of a legislative body representing the people in India started during British rule with the formation of **Legislative Councils**.
- The **Indian Councils Act of 1861** initiated this system, which gradually expanded under the **Government of India Acts of 1909 (Morley-Minto Reforms)** and **1919 (Montagu-Chelmsford Reforms)**.

- **Constituent Assembly:**

- After India gained independence in 1947, the **Constituent Assembly** was formed to draft the Constitution of India.
- **This assembly worked as a temporary Parliament until the Constitution was fully implemented in 1950.**
- It was this assembly that laid the foundation for the current bicameral legislature, consisting of **Lok Sabha (House of the People)** and **Rajya Sabha (Council of States)**.

- **First Lok Sabha:**

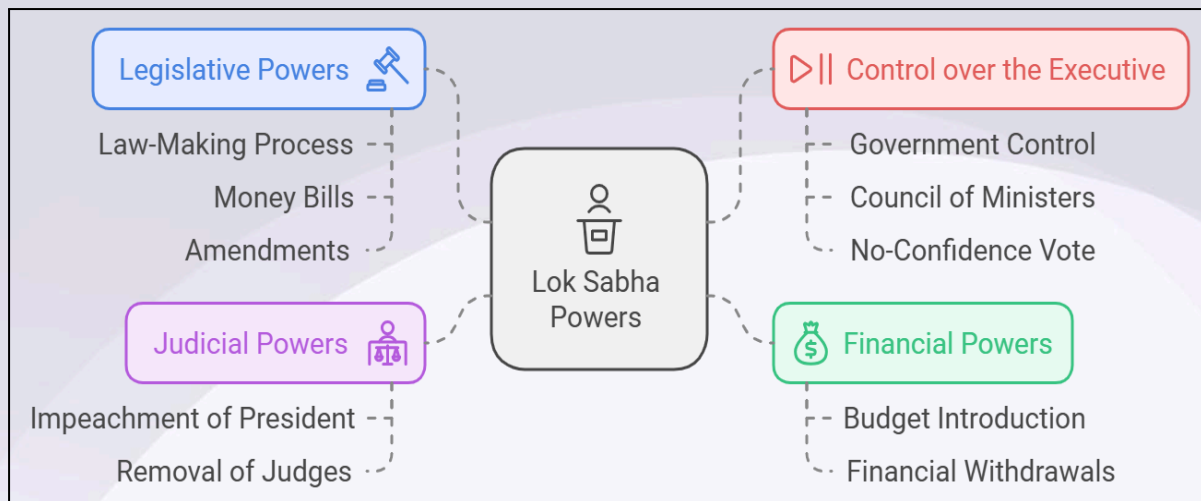
- The first general elections were held in **1951-52**.

- **Jawaharlal Nehru** became the first **Prime Minister**, and the First Lok Sabha had a tenure from **1952** to **1957**.
- It was composed of **489 seats**, representing the **29** states and union territories of India at that time.

Lok Sabha Overview:

- Lok Sabha is the lower house of India's bicameral Parliament, representing the people of India.
- It operates under **Articles 79** to **122** of the Indian Constitution.
- Maximum strength: **552** members.
 - **530** represent the states.
 - **20** represent Union Territories.
 - **2** Anglo-Indian members (nominated by the President if deemed necessary; this provision has now been abolished after the 104th Constitutional Amendment Act, 2019).
- **Composition and Strength**
 - Current strength: **543** elected members.
 - Members are directly elected by the people of India through **Universal Adult Suffrage**.
 - Each member represents a single constituency.
 - Term: **5 years**, unless dissolved sooner.
 - The term may be extended during a **national emergency (Article 352)**.
 - The **104th Constitutional Amendment Act (2019)** removed the provision for the nomination of **Anglo-Indian** representatives in the Lok Sabha and State Legislative Assemblies.
- **Electoral Process**
 - **Election Process:** Members of the Lok Sabha are elected through a first-past-the-post voting system.
 - **Eligibility for Membership:**
 - Must be a citizen of India.
 - Minimum age: 25 years.
 - Must not hold any office of profit under the Government of India or a State Government.
 - **Presiding Officer**
 - **Speaker:**

- Elected from amongst its members.
- Presides over the sessions of **the Lok Sabha**, maintains order, and ensures parliamentary procedures are followed.
- The Speaker has a casting vote in the case of a tie.
- **Deputy Speaker:** Also elected from amongst the members, assists the Speaker.
- **Sessions of Lok Sabha**
 - Three main sessions:
 - Budget Session (February - May)
 - Monsoon Session (July - September)
 - Winter Session (November - December)
 - Quorum: **At least 1/10th of the total strength must be present for the proceedings to be valid (Article 100).**
- **Powers and Functions**
 - **Legislative Powers:**
 - Lok Sabha participates in the law-making process, as it has the power to introduce, debate, and pass bills.
 - **Money Bills (Article 110)** can only be introduced in the Lok Sabha.
 - Rajya Sabha can only recommend amendments to Money Bills.
 - Lok Sabha can reject or accept these amendments.
 - **Financial Powers:**
 - The budget is introduced and passed in Lok Sabha.
 - Money can only be withdrawn from the Consolidated Fund of India with the approval of the Lok Sabha.
 - **Control over the Executive:**
 - Lok Sabha exercises control over the government through questions, adjournment motions, no-confidence motions, etc.
 - The Council of Ministers is collectively responsible to the Lok Sabha (Article 75).
 - If the Lok Sabha passes a no-confidence vote against the Council of Ministers, it must resign.
 - **Judicial Powers:**
 - Lok Sabha can initiate the impeachment of the President (Article 61).
 - It also plays a role in the removal of the Chief Justice of India, judges of the Supreme Court, and judges of the High Courts.



• Types of Bills

- **Ordinary Bill:** Can be introduced in either house and follows a regular procedure.
- **Money Bill:** Deals exclusively with taxation or government spending. Introduced only in Lok Sabha and passed with a simple majority.
- **Financial Bill:** Also concerns government finances but has additional clauses beyond money matters.
- **Constitutional Amendment Bill:** Requires a special majority in both houses for passing (**Article 368**).

• Special Powers of Lok Sabha

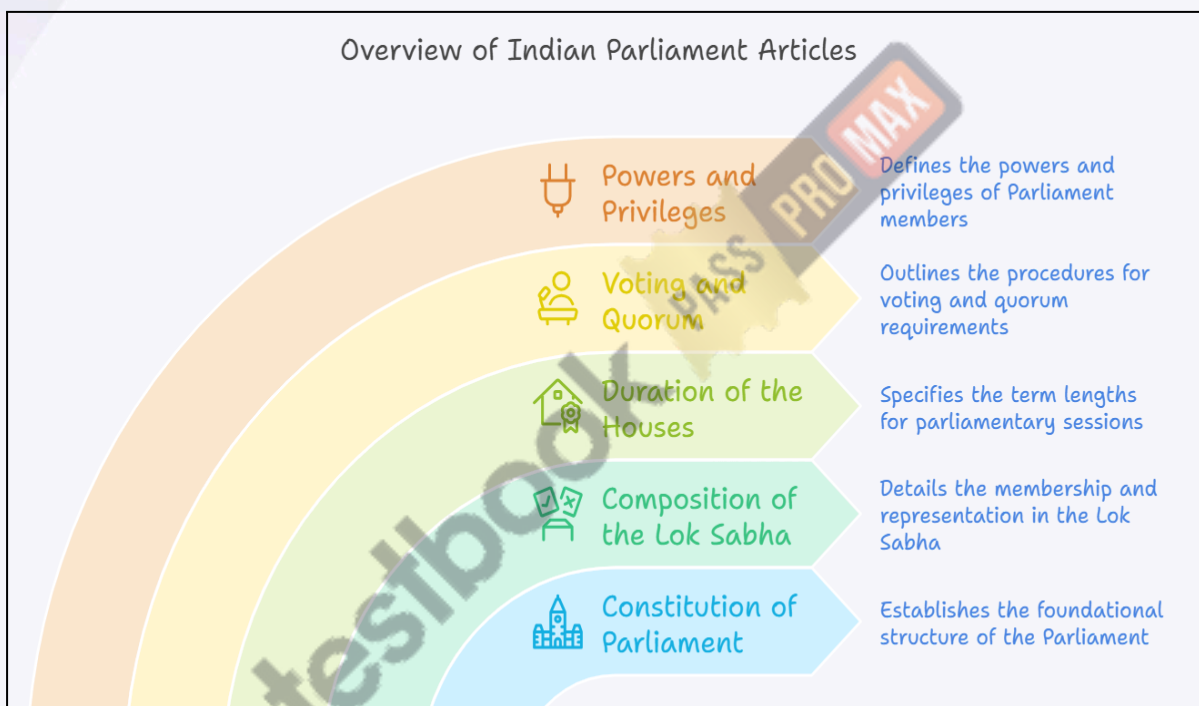
- **Money Bills:** Rajya Sabha has limited power over Money Bills. If it does not return a Money Bill within 14 days, it is deemed to have been passed.
- **No-Confidence Motion:** The Rajya Sabha does not have the power to move a no-confidence motion, making Lok Sabha pivotal in the stability of the government.
- **Privileges of Members**
 - Freedom of speech inside the House.
 - Freedom from arrest during the session and 40 days before and after.
 - Exemptions from jury service when Parliament is in session.

• Committees of Lok Sabha

- **Standing Committees:** Permanent committees such as Public Accounts Committee, Estimates Committee, etc.
- **Ad hoc Committees:** Temporary committees formed for a specific purpose, such as a Select Committee or Joint Parliamentary Committee.

• **Key Constitutional Articles Related to Lok Sabha:**

- **Article 79:** Constitution of Parliament.
- **Article 81:** Composition of the Lok Sabha.
- **Article 83:** Duration of the Houses of Parliament.
- **Article 100:** Voting and quorum in Houses.
- **Article 105:** Powers, privileges, etc. of the Houses of Parliament and their members.
- **Article 110:** Definition of Money Bills.
- **Article 118:** Rules of procedure.



• **Dissolution and Re-election**

- The Lok Sabha can be dissolved by the President of India on the advice of the Prime Minister before completing its term.
- Fresh elections are held to reconstitute the house.

• **LEGISLATIVE PROCEDURE**

- **A definite procedure is followed in the process of making law.**
- **Some of the procedures of law-making are mentioned in the Constitution, while some have evolved from conventions.**

• **Loksabha vs Rajyasabha:**

Feature	Rajya Sabha (Council of States)	Lok Sabha (House of the People)
Constitutional Article	Article 79-122	Article 79-122
Maximum Strength	250 members	552 members
Current Strength	245 members	543 members
Representation	Represents the states and Union Territories	Represents the people of India
Election Method	Indirect election by state legislative assemblies	Direct election by the people
Term of Members	6 years (1/3 members retire every 2 years)	5 years (unless dissolved earlier)
Minimum Age	30 years	25 years
Presiding Officer	Chairman (Vice President of India)	Speaker
Money Bill	Cannot introduce or amend; can only make suggestions	Can introduce and pass Money Bills
Legislative Power	Cannot oust the government through no-confidence	Can oust the government through a vote of no-confidence
Dissolution	Permanent body (not subject to dissolution)	Subject to dissolution
Control over Executive	Limited	Full control (through no-confidence motions, etc.)
Special Powers	Can declare a bill of national importance	Controls the finances and executive decisions
Quorum	1/10th of the total members	1/10th of the total members
Sessions	Same as Lok Sabha (Budget, Monsoon, Winter)	Budget, Monsoon, and Winter Sessions
Impeachment of President	Participates with Lok Sabha	Participates with Rajya Sabha
Ordinary Bill	Can be introduced and passed	Can be introduced and passed
No-Confidence Motion	Cannot initiate or pass	Can initiate and pass

- Types of bill:

Type of Bill	Introduced in	Purpose	Role of Rajya Sabha	Role of Lok Sabha	Special Requirement
Ordinary Bill	Either House	Any matter except financial matters	Can amend, reject, or pass with/without amendments	Can amend, reject, or pass with/without amendments	A simple majority in both houses
Money Bill	Only in Lok Sabha	Relates exclusively to financial matters like taxes, borrowing, etc.	Can only make recommendations; Lok Sabha may accept or reject	Has final authority on passing the bill	Must be passed within 14 days in Rajya Sabha; the Speaker certifies it as a Money Bill
Financial Bill	Either House	Relates to finances but includes other matters as well	Can amend, reject, or pass with/without amendments	Can amend, reject, or pass with/without amendments	Treated as an Ordinary Bill in most cases
Constitutional Amendment Bill	Either House	Amends the provisions of the Constitution	Must pass with a special majority	Must pass with a special majority	Requires a special majority in both Houses (2/3rd members present and voting)
Appropriation Bill	Only in Lok Sabha	Grants government permission to withdraw funds from the Consolidated Fund of India	Can only make recommendations; the Lok Sabha has the final say	Has final authority on passing the bill	Must be passed after the budget approval
Private Member's Bill	Either House	Introduced by MPs who are not Ministers	Same process as an Ordinary Bill	Same process as an Ordinary Bill	Can be introduced by non-Ministers only

- **A Bill**

- It is a draft of the proposed law.

- **Types of Bills:**

- **Private Member's Bill** - When a non-minister proposes a bill.
- **Government Bill** - A bill proposed by a minister.
- Even before a bill is introduced in Parliament there may be a lot of debate about that bill from the part of political parties, interest groups, media, citizens' forums, etc.
- law-making is thus not merely a legal procedure but also a political course of action.

- **Factors to consider before preparing a bill:**

- Resources required to implement the law.
- The support or opposition that the bill is likely to produce.
- The impact that the law may have on the electoral prospect of the ruling party etc.
- Once the Cabinet approves the policy behind the legislation, the task of drafting the legislation begins.

- **Stages of Legislative Procedure**

- **Preparation of Draft.**

- The draft of any bill is prepared by the concerned ministry.
- Within the Parliament, a bill may be introduced in the Lok Sabha or Rajya Sabha by a member of the House (but often a minister responsible for the subject introduces the bill).
- A money bill can be introduced only in Lok Sabha.
- Once passed there, it is sent to the Rajya Sabha.

- **Discussion in the Committees.**

- A large part of the discussion on the bills takes place in the committees.
- The recommendation of the committee is then sent to the House.
- That is why committees are referred to as miniature legislatures.

- **Voting of the Bill.**

- If a non-money bill is passed by one House, it is sent to the other House where it goes through the same procedure.
- If there is a disagreement between the two Houses on the proposed bill, an attempt is made to resolve it through the Joint Session of Parliament.
- There were only a few instances of Joint Sessions.
- In all these sessions, the decision has always gone in favor of the Lok Sabha.
- When a bill is passed by both Houses, it is sent to the President for his assent.
- The assent of the President results in the enactment of a bill into law.
- If it is a money bill, the Rajya Sabha can either approve the bill or suggest changes but cannot reject it.
- If it takes no action within 14 days the bill is deemed to have been passed.
- Amendments to the bill, suggested by Rajya Sabha, may or may not be.

- **Article 109**

- Special procedure in respect of Money Bills.
- A **Money Bill** shall not be introduced in the Council of States.

- **Conclusion:**

- **Legislative Supremacy:** As the principal legislative body, the Lok Sabha holds supremacy in law-making, especially regarding financial matters.
- It has exclusive power over the passage of Money Bills and plays a decisive role in shaping India's socio-economic policies.
- Its decisions on legislation significantly impact the country's governance.
- **People's Voice:** Lok Sabha embodies the democratic principle of popular sovereignty.
- Through direct elections, it ensures that the will of the people is reflected in the nation's laws and governance.
- The structure and functioning of the Lok Sabha make it a crucial institution in protecting the rights and interests of citizens while ensuring the rule of law and accountability of the government.
- **Significance:** The Lok Sabha, being the direct representative of the people, plays a pivotal role in Indian democracy.
- It controls the executive, passes laws, and approves financial matters. Its ability to dissolve the government through a no-confidence motion ensures accountability and keeps the government answerable to the people.
- Through its legislative and financial powers, the Lok Sabha remains the cornerstone of India's parliamentary democracy.